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CHAPTER 7

TECHNICAL BARRIERS TO TRADE

Article 7.1

Objective

The objective of this Chapter is to increase and facilitate trade in goods by preventing, identifying, and eliminating unnecessary technical barriers to trade, and enhancing cooperation between the Parties.

Article 7.2

Scope

1. This Chapter applies to the preparation, adoption and application of all standards, technical regulations and conformity assessment procedures as defined in the TBT Agreement, which may affect trade in goods between the Parties.
2. Notwithstanding paragraph 1, this Chapter does not apply to:
 - (a) purchasing specifications prepared by governmental bodies for production or consumption requirements of such bodies; or
 - (b) sanitary and phytosanitary measures as defined in Annex A of the SPS Agreement which are covered by Chapter 6 (Sanitary and Phytosanitary Measures) of this Agreement.

Article 7.3

Aaffirmation of the TBT Agreement and Incorporation of Certain Provisions

1. The Parties affirm their rights and obligations under the TBT Agreement. Articles 2 to 9 and Annexes 1 and 3 are hereby incorporated into and made part of this Agreement, *mutatis mutandis*.
2. References to “this Agreement” in the TBT Agreement, as incorporated into this Agreement, are to be read, as appropriate, as references to this Agreement between the European Union and Indonesia.

3. The term “Members” in the TBT Agreement, as incorporated into this Agreement, shall mean the Parties to this Agreement.

Article 7.4

Technical Regulations

1. Each Party shall carry out, in accordance with its respective rules and procedures, a regulatory impact assessment of planned technical regulations.
2. Each Party shall, in accordance with its respective rules and procedures, assess the available regulatory and non-regulatory alternatives to the proposed technical regulation that may fulfil the Party’s legitimate objectives, in accordance with Article 2.2 of the TBT Agreement.
3. Each Party shall use relevant international standards where they exist or their completion is imminent, as a basis for its technical regulations, except when the Party developing the technical regulation can demonstrate that such relevant international standards would be an ineffective or inappropriate means for the fulfilment of the legitimate objectives pursued.
4. International standards developed by the organisations listed in Annex 7-A (List of International Standardising Bodies) shall be considered to be the relevant international standards within the meaning of Article 2, Article 5, and Annex 3 of the TBT Agreement, provided that in development of these standards these organisations have complied with the principles and procedures set out in the Decision of the WTO Committee on Technical Barriers to Trade on Principles for the Development of International Standards, Guides, and Recommendations with Relation to Article 2, Article 5, and Annex 3 of the TBT Agreement.
5. At the request of either Party the Trade Committee shall consider updating the list of Annex 7-A (List of International Standardising Bodies).
6. If a Party has not used international standards as a basis for its technical regulations, it shall, on request from the other Party, identify any substantial deviation from the relevant international standard and explain the reasons why such standards have been judged inappropriate or ineffective for the aim pursued, and provide the scientific or technical evidence on which this assessment is based.
7. In addition to Article 2.3 and 2.4 of the TBT Agreement, the Parties shall review technical regulations with a view to increasing their convergence with relevant international standards. The Parties shall, *inter alia*, take into account any new development in the relevant international standards and whether the circumstances that have given rise to divergences from any relevant international standard continue to exist.
8. In accordance with its respective rules and procedures and without prejudice to Chapter 19 (Good Regulatory Practices) when developing major technical regulations which may have a significant effect on trade, each Party shall ensure that transparency procedures

exist that allow persons of the Parties to provide input through a public consultation process except where urgent problems of safety, health, environmental protection or national security arise or threaten to arise. Each Party shall allow persons of the other Party to participate to such public consultations on terms no less favourable than those accorded to its own persons and shall endeavour to make the results of that consultation process public¹.

9. Each Party shall aim to apply its technical regulations uniformly and shall apply such technical regulations consistently to its territory in a manner consistent with the TBT Agreement.

Article 7.5 Standards

1. With a view to harmonising standards on as wide a basis as possible, the Parties shall encourage the standardising bodies within their territories, as well as, if applicable, the regional standardising bodies of which they or their standardising bodies within their territories are Members:
 - (a) to participate, within the limits of their resources, in the preparation of international standards by relevant international standardising bodies;
 - (b) to use relevant international standards as a basis for the standards they develop, except where such international standards would be ineffective or inappropriate, for instance because of an insufficient level of protection or fundamental climatic or geographical factors or fundamental technological problems;
 - (c) to avoid duplication of, or overlap with, the work of international standardising bodies;
 - (d) to review national and, if applicable, regional standards not based on relevant international standards at regular intervals, with a view to increasing their convergence with relevant international standards;
 - (e) to cooperate with the relevant standardisation bodies of the other Party in international standardisation activities in the international standardisation bodies or at regional level; and
 - (f) to foster bilateral cooperation with the standardisation bodies of the other Party.
2. The Parties should exchange information on:
 - (a) their use of standards in support of technical regulations; and
 - (b) each other's standardisation processes, and the extent of use of international standards and regional standards as a base for their national standards.

¹ For greater certainty nothing in this Article shall be construed to require a certain manner or mechanism for publication of the results of a consultation.

3. Where compliance with a standard is required in a Party through incorporation of, or reference to, a standard in a technical regulation or a conformity assessment procedure, the Party shall, in developing the draft technical regulation or conformity assessment procedure comply with the transparency obligations set out in Article 7.7 (Transparency) of this Chapter and in Articles 2 or 5 of the TBT Agreement.

Article 7.6

Conformity Assessment

1. Without prejudice to Articles 5, 6, and 7 of the TBT Agreement, the provisions set out in Article 7.4 (Technical Regulations) with respect to the preparation, adoption, and application of technical regulations shall also apply, *mutatis mutandis*, to conformity assessment procedures.
2. If a Party requires conformity assessment as a positive assurance that a product conforms with a technical regulation, it shall:
 - (a) select conformity assessment procedures proportionate to the risks involved as determined on the basis of a risk-assessment in accordance with each Party's rules;
 - (b) consider the use of a Supplier's Declaration of Conformity², as an assurance of conformity among the options for showing compliance with a technical regulation; and
 - (c) if requested, provide information to the other Party on the criteria used to select the conformity assessment procedures for specific products.
3. If a Party requires third party conformity assessment as a positive assurance that a product conforms with a technical regulation, and it has not reserved this task to a governmental body as specified in paragraph 4, it shall:
 - (a) use accreditation as the preferred means to qualify conformity assessment bodies;
 - (b) make the best use of international standards for accreditation and conformity assessment, as well as international agreements involving the Parties' accreditation bodies, for example, through the mechanisms of the International Laboratory Accreditation Cooperation ("ILAC") and the International Accreditation Forum ("IAF");
 - (c) join or, as applicable, encourage its conformity assessment bodies to join any functioning international agreements or arrangements for the harmonisation or facilitation of acceptance of conformity assessment results;
 - (d) ensure that economic operators have a choice amongst the conformity assessment bodies designated by the authorities for a particular product or set of products;

² A Supplier's Declaration of Conformity is a first-party attestation of conformity issued by the manufacturer on its sole responsibility based on the results of an appropriate type of conformity assessment activity and excluding mandatory third-party assessment.

- (e) ensure that conformity assessment bodies carry out their activities in an independent manner in respect of economic operators and that there are no conflicts of interest between accreditation bodies and conformity assessment bodies;
 - (f) allow, to the extent possible, conformity assessment bodies to use subcontractors to perform testing or inspections in relation to the conformity assessment, including subcontractors located in the territory of the other Party. Nothing in this subparagraph shall prohibit a Party from requiring subcontractors to meet the same requirements that the conformity assessment body itself must meet to perform testing or inspections; and
 - (g) publish by electronic means, preferably on a single website, a list of the bodies that it has designated to perform such conformity assessment and relevant information on the scope of each such body's designation.
4. Nothing in this Article shall preclude a Party from requesting that conformity assessment in relation to specific products is performed by specified government authorities of the Party. In such cases, the Party shall:
- (a) limit the conformity assessment fees to the approximate cost of the services rendered and upon the request of an applicant for conformity assessment, explain how any fees it imposes for such conformity assessment are limited in amount to the approximate cost of the services rendered; and
 - (b) make publicly available the conformity assessment fees.
5. Notwithstanding the provisions of paragraphs 2 to 4, in the fields listed in Annex 7-B, in the cases in which the EU accepts Supplier's Declaration of Conformity as proof of compliance with existing EU technical regulations, and Indonesia requires mandatory third-party conformity assessment, Indonesia shall, subject to its laws and regulations, accept certificates and test reports issued by conformity assessment bodies that are located in the Union's territory and which have been accredited for the relevant scopes by accreditation bodies that are established in the Union and are ILAC or IAF members, as proof of compliance with its existing technical regulations.

Article 7.7

Transparency

1. Each Party shall allow a period of at least 60 days following its transmission to the WTO Central Registry of Notifications of proposed technical regulations and conformity assessment procedures for the other Party to provide written comments, except where urgent problems of safety, health, environmental protection or national security arise or threaten to arise. Where practicable, a Party shall give positive consideration to a reasonable request to extend the comment period.
2. The Party shall provide, in case the notified text is not in one of the official WTO languages, a clear and comprehensive description of the content of the measure in the WTO notification format.

3. If a Party receives written comments on its proposed technical regulation or conformity assessment procedure from the other Party, it shall:
 - (a) if requested by the other Party, discuss the written comments with the participation of its competent regulatory authority, at a time when they can be taken into account; and
 - (b) reply in writing to the comments no later than the date of publication of the adopted technical regulation or conformity assessment procedure.
4. Each Party shall commit to publishing on a website its responses to comments it receives on its notifications referred to in paragraph 1 no later than the date of publication of the adopted technical regulation or conformity assessment procedure.
5. Each Party shall, if requested by the other Party, provide information regarding the objectives of, legal basis and rationale for, a technical regulation or conformity assessment procedure that the Party has adopted or is proposing to adopt.
6. Each Party shall ensure that its adopted technical regulations and conformity assessment procedures are published on a website free of charge.
7. Each Party shall provide information on the adoption and the entry into force of the technical regulation or conformity assessment procedure and the adopted final text through an addendum to the original notification to the WTO.
8. Each Party shall allow a reasonable interval between the publication of technical regulations or conformity assessment procedures and their entry into force for economic operators of the other Party to adapt. "Reasonable interval" shall be understood to normally mean a period of not less than 6 months, except when this would be ineffective in fulfilling the legitimate objectives pursued.
9. A Party shall give positive consideration to a reasonable request from the other Party, received prior to the end of the comment period following the transmission of a proposed technical regulation or conformity assessment procedure to extend the period of time between the publication of the technical regulation or conformity assessment procedure and its entry into force, except where the delay would be ineffective in fulfilling the legitimate objectives pursued.

Article 7.8

Marking and Labelling

1. The Parties affirm that their technical regulations including or dealing exclusively with mandatory marking or labelling will follow the principles of Article 2 of the TBT Agreement.

2. Unless it is necessary in view of the legitimate objectives referred to in Article 2.2 of the TBT Agreement, the Parties agree that where a Party requires mandatory marking or labelling of products:
 - (a) the Party shall only require information which is relevant for consumers or users of the product or to indicate the product's conformity with the mandatory technical requirements;
 - (b) the Party shall not require any prior approval, registration or certification of the labels or markings of products, nor any fee disbursement, as a precondition for placing on its market products that otherwise comply with its mandatory technical requirements;
 - (c) where the Party requires the use of a unique identification number by economic operators, the Party shall issue such number to the economic operators of the other Party without undue delay and on a non-discriminatory basis;
 - (d) provided it is not misleading, contradictory or confusing in relation to the information required in the importing Party of the goods, the Party shall permit the following:
 - (i) information in other languages in addition to the language required in the importing Party of the goods;
 - (ii) internationally accepted nomenclatures, pictograms, symbols or graphics, as defined by the organisations listed in, but not limited to, Annex 1; and
 - (iii) additional information to that required by the importing Party on the goods.
 - (e) the Party shall accept that labelling, including supplementary labelling or corrections to labelling, take place in customs warehouses or other designated areas in the customs territory of the importing Party unless such labelling is required to be carried out by competent authorities or by approved entities, as applicable, for reasons of public health or safety; and
 - (f) the Party shall endeavour to the extent possible to accept non-permanent or detachable labels, or inclusion of relevant information in the accompanying documentation, rather than labels physically attached to the product.
3. Paragraph 2 of this Article shall not apply to marking or labelling of medicinal products as defined by the legislation of the respective Party.

Article 7.9

Cooperation on Market Surveillance³

1. The Parties recognise the importance of cooperation on market surveillance, safety and compliance for the facilitation of trade and for the protection of consumers and other users, and of building mutual trust based on timely shared information.
2. The Parties shall ensure that:
 - a) market surveillance functions are carried out by the competent authorities and that no conflicts of interest exist between the market surveillance function and the conformity assessment function; and
 - b) there are no conflicts of interest between market surveillance bodies and the economic operators subject to control or supervision.
3. The Parties may cooperate and exchange views and information on matters related to market surveillance and enforcement activities.
4. The Union may provide Indonesia with selected information from its rapid alert system, or its successor, with respect to consumer products as referred to in Directive 2001/95/EC of the European Parliament and of the Council of 3 December 2001 on general product safety or its successor, and Indonesia may provide the Union with selected information from its relevant databases with respect to consumer products as referred in its laws and regulations, on the safety of consumer products and on preventive, restrictive and corrective measures taken. The information exchange may take the form of:
 - (a) non-systematic exchange, in duly justified and specific cases, excluding personal data; or
 - (b) systematic exchange, based on relevant arrangement on the safety of consumer products as established by a decision of the Trade Committee in Annex 7-D (Arrangement referred to in Article 7.9(4) for the systematic exchange of information in relation to the safety of non-food products and related preventive restrictive and corrective measures).
5. The Parties may, subject to their respective laws and regulations, systematically exchange information on non-compliant products, including by electronic means, based on an arrangement established by a decision of the Trade Committee in Annex 7-E (Arrangement referred to in Article 7.9(5) for the regular exchange of information regarding measures taken on non-compliant non-food products, other than those covered by article 7.9(4)).
6. Within the context of this Agreement, the Parties shall use the information obtained pursuant to paragraphs 3, 4 and 5 for the sole purpose of protection of consumers, health, safety or the environment, and treat it as confidential.
7. The arrangements referred to in paragraphs 4 and 5 shall specify the type of information to be exchanged, the modalities for the exchange and the application of confidentiality and personal data protection rules.

[The Trade Committee shall have the power to adopt decisions in order to establish or amend Annexes 7-D (Arrangement referred to in Article 7.9(4) for the systematic

³ For the purposes of this Article, “market surveillance” is the activity carried out by relevant public authorities to ensure that products on the market conform and comply with the Parties’ applicable laws and regulations.

exchange of information in relation to the safety of non-food products and related preventive restrictive and corrective measures) and 7-E (Arrangement referred to in Article 7.9(5) for the regular exchange of information regarding measures taken on non-compliant non-food products, other than those covered by article 7.9(4)) referred to in point (b) of paragraphs 4 and paragraph 5.

Article 7.10

Technical Discussions and Consultations

1. Each Party may request to discuss any draft or proposed technical regulation or conformity assessment procedure of the other Party that the Party considers might significantly adversely affect trade between the Parties. The request shall be made in writing and identify:
 - (a) the measure at issue;
 - (b) the provisions of this Chapter to which the concerns relate; and
 - (c) the reasons for the request, including a description of the requesting Party's concerns regarding the measure.
2. A Party shall deliver its request to the Chapter Coordinator of the other Party designated pursuant to Article 7.11 (TBT Chapter Coordinator).
3. At the request of either Party, the Parties shall meet to discuss the concerns raised in the request, in person or via video or teleconference, within 60 days of the date of the request and shall endeavour to resolve the matter as expeditiously as possible. If the requesting Party believes that the matter is urgent, it may request that any meeting take place within a shorter time frame. In such cases, the responding Party shall give positive consideration to such a request.
4. A Party may request consultations with the other Party regarding any matter arising under this Chapter by delivering a written request to the TBT Chapter Coordinator of the other Party pursuant to Article 11 (TBT Chapter Coordinator). The Parties shall make every attempt to arrive at a mutually satisfactory resolution of the matter.
5. For greater certainty, this Article is without prejudice to a Party's rights and obligations under Chapter 22 (Dispute Settlement) of this Agreement.

Article 7.11

TBT Chapter Coordinator

1. Each Party shall nominate a TBT Chapter Coordinator and inform the other Party if it changes. The TBT Chapter Coordinators shall work jointly to facilitate the implementation of this Chapter and cooperation between the Parties in all matters arising under the Chapter.

2. The functions of the TBT Chapter Coordinators shall include:
 - (a) monitoring the implementation and administration of this Chapter, promptly addressing any issue that either Party raises related to the development, adoption, application or enforcement of standards, technical regulations and conformity assessment procedures, and upon either Party's request, consulting on any matter arising under this Chapter;
 - (b) enhancing cooperation in the development and improvement of standards, technical regulations and conformity assessment procedures;
 - (c) arranging the establishment of technical discussions as appropriate in accordance with Article 7.10 (Technical Discussions and Consultations); and
 - (d) exchanging available information on developments in non-governmental, regional, and multilateral fora related to standards, technical regulations, and conformity assessment procedures.
3. The TBT Chapter Coordinators shall communicate with one another by any agreed method that is appropriate to carry out their functions.

ANNEX 7-A
List of International Standardising Bodies

1. International Organisation for Standardisation (“ISO”);
2. International Electrotechnical Commission (“IEC”);
3. International Telecommunication Union (“ITU”);
4. Codex Alimentarius Commission;
5. International Civil Aviation Organisation (“ICAO”);
6. World Forum for Harmonisation of Vehicle Regulations (WP.29) within the framework of the United Nations Economic Commission for Europe (“UNECE”);
7. United Nations Sub-Committee of Experts on the Globally Harmonized System of Classification and Labelling of Chemicals (“UN/SCEGHS”);
8. International Council on Harmonisation of Technical Requirements for Pharmaceuticals for Human Use (“ICH”);
9. International Maritime Organisation (“IMO”);
10. International Organisation of Legal Metrology (“OIML”);
11. International Olive Council (“IOC”);
12. Universal Postal Union (“UPU”);
13. Bureau International des Poids et Mesures (“BIPM”);

ANNEX 7-B

SUPPLIER'S DECLARATION OF CONFORMITY – FIELDS AND MODALITIES

1. The scope of the Annex covers the following fields:
 - (a) The field of safety aspects of electrical and electronic equipment, which covers the safety aspects of equipment other than machinery which is dependent on electric currents in order to work properly and equipment for the generation, transfer and measurement of such currents and which is designed for use with a low voltage rating of between 50 and 1000 V for alternating current and between 75 and 1500 V for direct current, as well as equipment which intentionally emits or receives electromagnetic waves of frequencies lower than 3000 GHz with the purpose of radio communication or radiodetermination;
 - (b) The field of safety aspects of machinery, which covers the safety aspects of an assembly consisting of at least one moving part, powered by a drive system using one or more sources of energy such as thermal, electric, pneumatic, hydraulic or mechanical energy, arranged and controlled so that they function as an integral whole, with the exception of high-risk machinery as defined by each Party
 - (c) The field of electromagnetic compatibility of equipment, which covers the electromagnetic compatibility (disturbance and immunity) of equipment which is dependent on electric currents or electromagnetic fields in order to work properly and equipment for the generation, transfer and measurement of such currents
 - (d) The field of energy efficiency, which covers the ratio of output of performance, service, goods or energy to input of energy of a product with an impact on energy consumption during use, and in light of the efficient allocation of resources
 - (e) The field of restriction of the use of certain hazardous substances in electrical and electronic equipment; and

(f) The field of non-electrical/non-electronic sanitary appliances, which covers the following products: water closets (WC), whirlpools, kitchen sinks, urinals, baths, shower trays, bidets and wash basins.

2. This Annex does not cover whole aircraft, whole vessels, whole railway wagons or whole vehicles (including internal combustion engines (ICE) and electric vehicles), including their systems, as well as any specialised maritime, railway, aviation and vehicle equipment.

3. Following the request by either Party, the Trade Committee shall review the list of fields set out in paragraph 1.

4. When applicable, either Party may introduce requirements for the mandatory third-party testing or certification for the product fields specified in this Annex, provided that such requirements are justified on the grounds of legitimate objectives and are proportionate to the purpose of giving the importing Party adequate confidence that products conform with the applicable technical regulations or standards, taking account of the risks that non-conformity would create.

5. A Party proposing to introduce the conformity assessment procedures referred to in paragraph 4 shall notify the other Party at an early appropriate stage and shall take the comments of the other Party into account in devising any such conformity assessment procedures. The notification based on the relevant provisions under Article 5 of the TBT Agreement will be considered as notification to the other Party.